

Jericho, VT.
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STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

Docket No. PST03-0599

In re Gary B. Bell
Roster No. 97-659

Hearing held at
Montpelier, Vermont
September 21, 2000

PRESENT: Leora E. Black, MFT, LCMHC, Hearing Panel Chair
Lauren G. Berrizbeitia, Rostered Psychotherapist
Christie Carter, Ad Hoc Hearing Panel Member
Marilyn L. Turcotte, LCMHC

APPEARANCES: Robert W. Gagnon, Sr. Asst. Attorney General
for the State of Vermont

DEFAULT ORDER

FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER

This matter came before the Board of Allied Mental Health Practitioners (Board) on a notice of charges filed by the State against Gary B. Bell (respondent). In making the default determination, the Board takes official notice of its case file in this matter, pursuant to 3 V.S.A. § 810(4).

Findings of Fact

1. By certified letter dated May 19, 2000, respondent was notified of the charges against him.
2. Respondent signed and returned the certified mail receipt on May 22, 2000.
3. Respondent failed to file an answer to the charges.
4. By certified letter dated June 22, 2000, respondent was notified of the September 21 hearing for default judgment.
5. Respondent signed and returned the certified mail receipt on June 23, 2000.
6. Respondent did not attend the September 21 default hearing, nor was he represented by counsel.

Conclusions of Law

The Board's case file in this matter shows that respondent received adequate notice under 3 V.S.A. § 809(b) of the charges against him and of the default hearing. Because respondent failed to answer the charges against him, the State's factual allegations in the charges are treated as proved. 3 V.S.A. § 809(d). Respondent has engaged in unprofessional conduct, as set forth in the State's specifications of charges dated May 16, 2000 (copy attached).

Order

IT IS HEREBY ORDERED by the Board of Allied Mental Health Practitioners of the State of Vermont that:

1. On the basis of the findings of fact and conclusions of law set forth above, respondent's entry on the roster of nonlicensed and noncertified psychotherapists in hereby REVOKED.

2. Pursuant to 3 V.S.A. §§ 129(a)(8) and 131(c)(2)(C), this document is a public record and may be provided to other licensing authorities.

3. This order takes effect as of the date of entry shown below.

Appeal Rights

This is a final administrative determination. A party may appeal by filing a written notice of appeal with the Director of the Office of Professional Regulation, Office of the Secretary of State, within 30 days of the effective date of this order.

Dated: _____

BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

By: _____

Leora E. Black *LMFT LCMHC*
Leora E. Black, MFT, LCMHC
Hearing Panel Chair

Date of entry: 10-3-00

STATE OF VERMONT
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

In Re:
Gary B. Bell
Roster No. 97-659

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Docket No. PST03-0599

SPECIFICATION OF CHARGES

1. The Special Panel for Nonlicensed and Noncertified Psychotherapists has jurisdiction to investigate complaints of unprofessional conduct and conduct hearings pursuant to 3 V.S.A. §129, and 26 V.S.A. §§4091, 4093.
2. Respondent Gary B. Bell of Jericho, Vermont, is a psychotherapist included in the State of Vermont's Roster of Nonlicensed and Noncertified Psychotherapists, holding roster number 97-659.
3. On or about January 16-27, 1999 Respondent undertook a court ordered evaluation for competency of one "Jane Doe".
4. By statute, T14 V.S.A. §3067(b) and §3061(10)(A), Respondent was not credentialed as one included of the stated "qualified mental health professional" who are authorized to do such evaluations for the court.
5. Respondent also signed the report filed with the court as "Gary Bell, Ph.D". Respondent claims a Doctor of Philosophy degree from LaSalle University of Cincinnati, Ohio. The Illinois State Board of Higher Education has reported that their records do not show that LaSalle Extension University ever possessed authority to confer a Ph.D. in Philosophy.
6. Respondent, by his acts as set forth in paragraphs 3 through 5 above, has engaged in unprofessional conduct. See 3V.S.A. §129a (a)(3) (failing to comply with state statutes) and 3 V.S.A. §129a(a)(7)(willfully making or filing a false report).

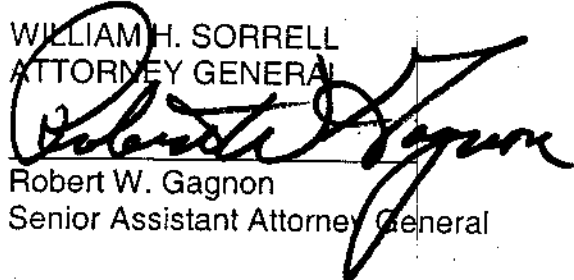
WHEREFORE, the license of Gary B. Bell should be revoked, suspended, reprimanded, conditioned or otherwise disciplined.

Dated: May 16th, 2000

STATE OF VERMONT

WILLIAM H. SORRELL
ATTORNEY GENERAL

by:


Robert W. Gagnon
Senior Assistant Attorney General